

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Khairul Alam

Civil Revision No. 2850 of 2019.

Nishi Kanta Gosh.

..... Petitioner.

-Versus-

Binoy Kumar Gosh, being dead his heirs Pranati Bala
Gosh and others.

..... Opposite parties.

Mr. Surojit Bhattacharjee, Advocate.

..... For the petitioner.

Mr. Amit Das Gupta, Advocate

..... For the opposite parties.

Heard on: 27.08.2025 and

Judgment on: 28.08.2025

This Rule was issued calling upon the opposite party No. 1 to show cause as to why the impugned judgment and order dated 26.06.2019 passed by learned District Special Judge, Sylhet in Miscellaneous Appeal No. 03 of 2018 allowing the appeal, reversing the judgment and order dated 19.11.2017 passed by the learned Senior Assistant Judge, Jaintiapur, Sylhet in Miscellaneous Case No. 02 of 2017 filed under Order IX rule 13 of the Code of Civil Procedure (shortly, the Code) by defendant No. 1 for setting aside the ex parte judgment and decree dated 24.07.2016 passed in Title Suit No. 09 of 2016 should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The facts of this case, so far as relevant for the purpose of the disposal of the Rule herein, are that the present petitioner as plaintiff instituted the suit impleading the present opposite parties as defendants praying, inter alia, a decree for declaration of title as well as for cancellation of three deeds in respect of the

suit property as described in the schedule to the plaint. On 24.07.2016, the suit was decreed ex parte. Against the said ex parte judgment and decree, the defendants filed Miscellaneous Case No. 02 of 2017 under Order IX, Rule 13 of the Code for setting aside the ex parte decree stating, inter alia, that earlier on 09.03.2012, the suit was dismissed on the ground of abetment. Against the said order, the plaintiff moved to the Court of Learned District Judge, Sylhet by preferring Civil Revision No. 58 of 2013. The revision was allowed and thus the original suit was restored after setting aside the order of abatement. Mr. Mostaque Ali and Mr. Kalyan Chowdhury were the learned Counsels of the defendants in the trial court and revisional court respectively. After the record had been transmitted from the revisional court to the trial court, it was inadvertently notified to Mr. Kalyan Chowdhury instead of learned Mr. Mostaque Ali. Accordingly, the suit was decreed ex parte on 20.02.17. Hence, the Miscellaneous Case. During the trial of the Miscellaneous Case, both parties adduced evidence to prove their respective claims. The learned Assistant Judge, Jaintiapur, Sylhet after hearing the said Miscellaneous Case by the order dated 19.01.2017 rejected the same, holding inter alia, that the defendants were duly informed and that the application was barred by limitation by 108 days. Against the said judgment and order the petitioner filed Miscellaneous Appeal No. 03 of 2018 before the Court of District Judge, Sylhet. The learned District Judge, Sylhet by the judgment and order dated 26.06.2019 allowed the Miscellaneous Appeal and reversed the judgment and order passed by the trial Court and thereby set aside the ex parte judgment and decree dated 24.07.2016 passed in Title Suit No. 09 of 2016, holding inter alia that notifying the wrong Counsel cannot in any way be considered as properly notified.

Being aggrieved thereby, the petitioners moved before this Hon'ble Court and obtained the Rule and an order of stay.

Mr. Surojit Bhattacharjee, the learned Advocate appearing for the petitioner submits that the trial Court rightly held that the decree was rightly passed, but the court of appeal below, without considering the same passed the impugned judgment order and thereby committed an error of law resulting in an error in the decision occasioning failure of justice. He next submits that no sufficient cause for setting aside the ex parte decree was shown despite of that the court of appeal below passed the impugned judgment and order restoring the suit to its original file and number after setting aside the ex parte judgment and decree which required to be interfered with.

Per contra, Mr. Amit Das Gupta, learned Advocate appearing for the opposite parties submits that the opposite parties had not been duly represented due to notifying the wrong Counsel and thus they were prevented by sufficient cause from appearing at the hearing. Since the court of appeal below held that the defendants were not duly notified, this Court, in its revisional jurisdiction should not interfere with the said finding. He next submits that notifying the wrong Advocate is a sufficient cause within the meaning of Order IX rule 13 of the Code, therefore, the Court of Appeal below rightly passed the impugned judgment order and hence the Rule is liable to be discharged.

I have considered the submissions of the learned Advocates for the contending parties, perused the revisional application, and other materials on record.

Before addressing the contentions of the contending parties it will be advantageous to quote the provision of Order IX Rule 13 of the Code, which runs as follows:-

“13. Setting aside decree ex parte against defendant. (1) In any case in which a decree is passed ex parte against a defendant, he may apply to the Court by which the decree was passed for an order to set it aside: and if he satisfies the Court that the summons was not duly served, or that he was prevented by any sufficient cause from appearing when the suit was called on for hearing, the Court shall make an order setting aside the decree as against him upon such terms as to costs, payment into Court or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit:

Provided that where the decree is of such a nature that it cannot be set aside as against such defendant only it may be set aside as against all or any of the other defendants also.

(2) The defendant shall, for service on the opposite party, present along with his application under this rule either-

(i) as many copies thereof on plain paper as there are opposite parties, or

(ii) if the Court by reason of the length of the application or the number of opposite parties or for any other sufficient reason grants permission in this behalf, a like number of concise statements.

(3) Provisions of section 5 of the Limitation Act, 1908 shall apply to the applications under rule 13 (1) of this order.”

As per the said provision, if any suit is decreed ex parte, the defendants may apply for an order to set it aside, and if he satisfies the Court that summons was not duly served, or that there was sufficient cause for his non-appearance when the suit was called on for hearing, the court shall make an order setting aside the decree, and shall appoint a day for proceeding with the suit.

In the present case, an order of abetment of the original suit was challenged in revision and the revisional Court sent the suit back to the trial Court for trial after setting aside the order of abetment. Mr. Mostaque Ali and Mr. Kalyan Chowdhury were the learned Counsels of the defendants in the trial court and

revisional court respectively. After the record had been transmitted to the trial court from the revisional Court, it was inadvertently notified to Mr. Kalyan Chowdhury instead of Mr. Mostaque Ali. Accordingly, the suit was decreed on 20.02.17 ex parte.

In the above facts and circumstances, I am of the view that notifying the wrong Advocate was clearly a procedural lapse, for which the defendant cannot be held responsible, and such a circumstance constitutes sufficient cause within the meaning of Order IX Rule 13 CPC.

Therefore, the Court of Appeal below rightly passed the impugned judgment and order after setting aside the judgment and order of the trial Court.

Therefore, I do not find any reason to interfere with the impugned judgment and order.

Hence, the Rule is devoid of any merit and the same is discharged without any costs.

The order of stay passed at the time of the issuance of the Rule is hereby vacated.

However, the trial court is hereby directed to dispose of Title Suit No. 09 of 2016 as early as possible preferably within 01 (one) year from the date of receipt of this judgment and order.

Let a copy of this judgment and order be communicated at once.

Kashem, B.O